

receiver, which is necessary to assess the receiver's ability to satisfactorily rehabilitate the subject property.

CITY OF BENICIA v. STEPHEN CLIFFORD BLACK and CHERYL ANN BLACK as Trustees of THE STEVEN BLACK AND CHERYL ANN BLACK REVOCABLE LIVING TRUST et al.
Case No. CU26-04398

Petition for Order to Abate Substandard Building and Appoint Receiver

TENTATIVE RULING

Petitioner CITY OF BENICIA's petition seeking an order declaring the property at 1030 West Sixth Street, Benicia, California 94510 substandard and appointing a receiver to abate the nuisance is denied without prejudice.

Health and Safety Code section 17980.7 permits a city to petition for a court order for appointment of a receiver for a substandard building subsequent to posting of notice of an order to repair or abate substandard conditions. Notice of this petition must be posted in a prominent place on the affected property and mailed to each person with a recorded interest in the property no later than three court days before the hearing on the petition. The petition must be served on the property owner according to Code of Civil Procedure section 415.10, *et seq.*; the owner has ten days to respond. The court must be satisfied that the owner has been afforded a reasonable opportunity to correct the nuisance conditions and the proposed receiver has the ability to satisfactorily rehabilitate the building before granting the petition. Thirty days affords statutorily accepted "reasonable opportunity." (Health & Saf. Code, § 17980, subd. (a).)

Petitioner states only that it posted notice of intent to file the instant petition, not the petition itself, on the subject property at least three days prior to filing the petition. Petitioner provides no proof of service indicating that notice of this petition was mailed to all persons with recorded interests in the subject property. The court is accordingly not satisfied that the owner has been afforded a reasonable opportunity to correct nuisance conditions. Petitioner also has not filed a memorandum in support of the petition identifying details of the proposed receivership such as the identity of the receiver, which is necessary to assess the receiver's ability to satisfactorily rehabilitate the subject property.

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